

Tentative Rulings for August 20, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500446	TODD vs VEVOR STORE, LLC,	MOTION PRO HAC VICE - JOSEPH D. COHEN AS TO LUCAS TODD

Tentative Ruling:

Defendant Vevor's Application for Joseph D. Cohen to Appear Pro Hac Vice pursuant to CRC §9.40 is granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505408	THE CHANG FAMILY TRUST, BY AND THROUGH ITS CO-TRUSTEES, JOHN H. CHANG AND AILEEN HSIAOLIN WANG vs ANGEL	HEARING ON RIGHT TO ATTACH ORDER (x3)

Tentative Ruling:

Plaintiffs John Chang and Aileen Hsiaolin Wang, trustees of The Chang Family Trust's Application for Writs of Attachment are denied.

An attachment is a provisional remedy to aid in the collection of money by seizure of property in advance of trial and judgment. (*Kemp Bros. Const., Inc. v. Titan Elec. Corp.* (2007) 146 Cal.App.4th 1474, 1476.) It creates a judicial lien on the debtor's attachable property and protects the plaintiff's priority. (Ahart, *California Practice Guide: Enforcing Judgments and Debts* § 4:3 (Rutter Group 2026).)

An attachment may be issued only if the claim sued upon meets the following requirements: (1) a "claim for money ... based upon a contract, express or implied"; (2) of a "fixed or readily ascertainable amount not less than \$500"; (3) that is either unsecured or secured by personal property; and (4) that is a commercial claim. (Code Civ. Proc., § 483.010; *Goldstein v. Barak Const.* (2008) 164 Cal.App.4th 845, 852.) To obtain a right to attach order, the plaintiff has the burden of proving (1) that the claim is one on which an attachment may be issued pursuant to Code of Civil Procedure section 483.010; (2) the probable validity of such claim; and (3) that the attachment is not sought for any purpose other than to secure recovery on the claim. (Code. Civ. Proc., § 484.090.) "Probable validity" is established when "it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (*Id.* at § 481.190.) "The legality of the attachment must be determined from the pleadings, proceedings and entire record in the attachment suit to ascertain therefrom what, in fact, the real grievance is for which relief is sought." (*Stowe v. Matson* (1949) 94 Cal.App.2d 678, 682.) A plaintiff must establish a prima facie case. (*Pech v. Morgan* (2021) 61 Cal.App.5th 841, 854.) When opposed, the court must "consider the relative merits of

the positions of the respective parties and make a determination of the probable outcome of the litigation.” (*Id.* at 855.)

EVIDENTIARY OBJECTIONS

In opposition, Defendants submit evidentiary objections. The court sustains nos. 2, 4, 6, 12-15, and overrules the remaining.

In reply, Plaintiff submits the following evidentiary objections. The court sustains nos. 1, 8, 10, 12.

In sur-reply, Defendants object to the new evidence submitted in reply. “The general rule of motion practice...is that new evidence is not permitted with reply papers.” (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) It is only allowed in “exceptional circumstances” and if permitted, the opposing party should be given an opportunity to respond. (*Id.* at 1538.) If the court considers the new evidence in reply, the court needs to continue the matter to allow Defendants to respond. Otherwise, the court should not consider the new evidence in reply.

Empire

Effective July 1, 2024, Empire enacted the plan “to provide Participants the opportunity to participate in an Incentive Compensation & Change of Control Plan of Empire....” (Chang Decl., Ex. A, §1.) A bonus payment is defined as “an annual payment for ten (10) consecutive years equal to the greater of: (i) ten percent (10%) of the Company’s EBITA for the prior calendar year, as reasonably determined by the Company’s accountant, or (ii) the Minimum Bonus Payment, paid in two installments....For purposes of clarity, the first Bonus Payment for 2024 will be based upon the 2023 EBITA calculation.” (*Id.* at §2(b).) Minimum Bonus Payment is defined as \$750,000; but “in the event the gross annual revenues for the prior calendar year are less than \$150,000,000, the Minimum Bonus Payment shall be proportionally reduced by the percentage decrease of gross annual revenues below \$150,000,000.” (*Id.* at §2(g).)

While it is true that the Manager shall select the Participants, as pointed out by Defendants (*id.* at §4(a)), a participant immediately vests (*id.* at §4(b)) and is evidenced by a Percentage Agreement (*id.* at §5(a).) Chang attaches the Percentage Agreement, which awards the Trust a 40% award. (Chang Decl., Ex. A.)

Thus, the Trust has demonstrated a claim for money based on an express contract, that is unsecured, and is a commercial claim. The problem is whether this is a readily ascertainable amount. Chang seeks a \$11 million attachment based on the 10 year compensation. However, that is not readily ascertainable as it is based on future revenue.

In the alternative, Chang requests \$1,800,000 based on a 2024 payment of \$1,050,000 based on the 2023 EBITA data, and \$750,000 as the minimum for the 2025 payment. The problem is that Chang is making an “approximation” of a \$10.5 million and

therefore, he is “approximately” owed \$1,050,000. By definition, from Merriam-Webster, approximative is “not precisely correct.” These are not fixed numbers, but estimates. There is a formula, but Chang does not have the actual EBITA number for either 2023 or 2024, which would make the numbers reasonably ascertainable. For minimum bonus payment, Chang does not establish that gross annual revenues were above \$150 million, for either year. (Chang Decl. ¶8.) “The fixed or readily ascertainable amount’ requirement embodies a notice principle, that the defendant in the pending case and any other creditors are given notice of the maximum amount of the property so affected. [Citation.] It also ensures that the attachment request may be fairly and accurately determined in summary proceedings before trial.” (*Royals v. Lu* (2022) 81 Cal.App.5th 328, 350 [internal quotation marks omitted].)

Without actual evidence of the EBITA or gross annual revenues, the Trust failed to establish a readily ascertainable amount. Accordingly, the motion should be denied.

Angel

Here, neither Angel nor Pivot Time are parties to the contract.

As to Angel, Plaintiff asserts the first cause of action of breach of contract against Angel; the only possible theory is an alter ego theory.

A claim against a defendant, based on the alter ego theory, is not itself a claim for substantive relief, e.g., breach of contract or to set aside a fraudulent conveyance, but rather, procedural, i.e., to disregard the corporate entity as a distinct defendant and to hold the alter ego individuals liable on the obligations of the corporation where the corporate form is being used by the individuals to escape personal liability, sanction a fraud, or promote injustice.” (*Hennessey’s Tavern, Inc. v. American Air Filter Co.* (1988) 204 Cal.App.3d 1351, 1359.) “A corporate identity may be disregarded—the ‘corporate veil’ pierced—where an abuse of the corporate privilege justifies holding the equitable ownership of a corporation liable for the actions of the corporation. [Citation.] Under the alter ego doctrine, then, when the corporate form is used to perpetrate a fraud, circumvent a statute, or accomplish some other wrongful or inequitable purpose, the courts will ignore the corporate entity and deem the corporation's acts to be those of the persons or organizations actually controlling the corporation, in most instances the equitable owners. [Citation.] The alter ego doctrine prevents individuals or other corporations from misusing the corporate laws by the device of a sham corporate entity formed for the purpose of committing fraud or other misdeeds.” (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538.)

The requirements for alter ego are (1) a unity of interest and ownership and (2) if the acts are treated as the corporations alone, an inequitable result would follow. (*Associated Vendors, Inc. v. Oakland Meat Co.* (1962) 210 Cal.App.2d 825, 837.) Factors that are considered when determining if the doctrine of alter ego applies are commingling of funds, holding out by one entity that it is liable for the debts of another, identical equitable ownership, use of the same offices and employees, use of one as a mere shell for the other, inadequate capitalization, disregard of corporate formalities,

and identical directors and officers. (*Sonora Diamond Corp.*, *supra*, 83 Cal.App.4th at 538-539.)

As the claim against Empire fails, this also fails.

Pivot Time

In contrast to Angel, Pivot Time is not sued under the 1st cause of action for breach of contract. Thus, it cannot be liable for breach of contract under an alter ego theory—the theory that is the basis in the application. Instead, Plaintiffs have sued Pivot Time for breach of implied contract under the 5th cause of action, which is based on principles of unjust enrichment (SAC ¶129), which the Trust did not argue. Accordingly, without alter ego as to the 1st cause of action, the application is denied.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506872	EVER PROSPEROUS REALTY INC. vs PROVIDENT BANK	MOTION TO QUASH SERVICE OF SUMMONS ON COMPLAINT

Tentative Ruling:

The Motion to Quash Service of Summons filed by Specially Appearing Defendants Isaac Louz and Rachman Louz (the “Louz Defendants”) is granted.

Based on the declaration of Isaac Louz, the Court finds that the Louz Defendants have not been personally served with the initiating paperwork in this action. Furthermore, Defendant Isaac Louz does not live in California and does not regularly conduct business within the state in his personal capacity. The Louz Defendants object to the Court’s jurisdiction on the grounds that they lack minimum contacts with the state and have not been properly served.

LEGAL STANDARD

Under Code of Civil Procedure section 418.10(a)(1), a defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over them. Once a defendant files a motion to quash, the burden is on the plaintiff to establish by a preponderance of the evidence that the court has jurisdiction over the moving defendant, as held in *Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991; *ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 209-210.

California’s long-arm statute, Code of Civil Procedure section 410.10, authorizes courts to exercise jurisdiction "on any basis not inconsistent with the Constitution of this state or of the United States". Due process requires that a nonresident defendant have "minimum contacts" with the forum state such that the exercise of jurisdiction does not

offend "traditional notions of fair play and substantial justice," a standard established in *International Shoe Co. v. State of Wash.* (1945) 326 U.S. 310, 316.

Specific Jurisdiction

Specific jurisdiction exists only if (1) the defendant has purposefully availed himself of forum benefits; (2) the controversy arises out of the defendant's contacts with the forum; and (3) jurisdiction comports with fair play and substantial justice (*Pavlovich v. Superior Court* (2002) 29 Cal. 4th 262, 269). The relationship must arise out of contacts the "defendant himself" creates with the forum state, not from the unilateral activity of the plaintiff (*Walden v. Fiore* (2014) 571 U.S. 277, 283–284).

In this case, the Louz Defendants contend they have no pervasive contacts with California. Mere knowledge that a plaintiff is located in California—or that harm might be suffered there—is insufficient to constitute purposeful direction (*Pactec Holdings, LLC v. Shanghai Zhongyan Info. Tech. Co.* (2025) 2025 WL 750913). Furthermore, simply entering into a contract with a California resident does not automatically subject a nonresident to specific jurisdiction (*Aquila, Inc. v. Superior Ct.* (2007) 148 Cal. App. 4th 556, 572).

Purposeful Direction

For tort claims, the Court applies a "purposeful direction" test, requiring evidence of intentional conduct deliberately targeting the forum state (*Casey v. Hill* (2022) 78 Cal.App.5th 1143, 1170). The Plaintiff's complaint fails to establish any such connection or purposeful targeting of California by the Louz Defendants.

Lack of Opposition

The Court further notes that the Plaintiff has not filed an opposition to this motion. Under *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20, a failure to oppose may be deemed an abandonment of the issue. The Court considers the lack of opposition to be an admission that the motion is meritorious.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507321	GALLANT vs ORANGE TREEIDENCE OPCO, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Defendant's Motion to Compel Arbitration as to the 1st, 2nd, and 3rd causes of action, is granted; conditioned on Defendant's election to advance plaintiff's share of the arbitration cost under *Roldan v. Callahan & Blaine* (2013) 219 Cal.App.4th 87, 96; as to Plaintiff Laura Caitlin Gallant Hurtado's individual 4th cause of action for wrongful death, it is denied. Entire Action is stayed pending completion of arbitration.

Length of Opposition

In reply, Defendant contends that Plaintiffs' Opposition exceeds the 15-page limit under CRC rule 3.1113(d) and asks the court to disregard it. The Opposition is 20 pages long. A memorandum exceeding the permissible page limits "must be filed and considered in the same manner as a late-filed paper"; i.e., the court in its discretion may refuse to consider it in ruling on the motion (CRC 3. 1113(g).) However, the court exercises its discretion to consider the Opposition as Defendant filed a substantive reply and identifies no resulting prejudice.

MERITS

Upon the petition/motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (C.C.P., § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The petition/motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC rule 3.1330; *see also Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218–19.) The party seeking arbitration must prove the existence of the arbitration agreement. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) The burden then shifts to the opposing party to prove any defense such as unconscionability. (*Id.*)

"In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability Parties may submit declarations when factual issues are tendered with a motion to compel arbitration." (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, "the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination." (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

The Federal Arbitration Act and California Arbitration Act do not create a presumption that arbitration is favored over litigation. Rather, they require arbitration agreements to be placed "upon the same footing as other contracts" and enforced according to ordinary contract principles. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 579.) The California Supreme Court has clarified that relying on a general policy favoring arbitration "as an interpretive presumption" is "misplaced." (*Fuentes v. Empire Nissan, Inc.* (2026) 19 Cal.5th 93, 110.) Thus, the court must determine whether a valid agreement exists, whether it covers the dispute, and whether any generally applicable defense defeats enforcement.

Existence of the Agreement

With its motion, Defendant submitted a copy of the arbitration agreement that Decedent signed on 5/21/25. (Dickens Decl., ¶ 3, Ex. B.) The agreement was also e-signed by Ariona Quijano on behalf of Defendant. (*Ibid.*) The agreement is sufficient under *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 218-19, which holds that the moving party ordinarily may meet its initial burden by alleging the agreement's existence and attaching a copy. "[U]nless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision." (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) Quijano further declares that "I was present at the time that Ms. Gallant signed the arbitration agreement. The signature of the Resident line is that of Ms. Gallant. I signed the agreement as the facility representative as seen on pages 4 and 5." (Quijano Decl., ¶ 4.) Plaintiffs submitted no declaration denying Decedent's signature or otherwise challenging authenticity. Plaintiff's daughter instead argues only that she is a non-signatory. (Hurtado Decl., ¶ 2.) Defendant has therefore established, by a preponderance of the evidence, the existence of an agreement between Decedent and Defendant.

Whether that agreement is enforceable and whether it covers Hurtado's individual wrongful-death claim are separate questions.

FAA

The FAA governs. First, the agreement states that:

"the parties agree that this Agreement is to be governed by the Federal Arbitration Act (9 U.S.C. §§1-16) and the procedural rules set forth in the Federal Arbitration Act shall govern any and all arbitration proceedings..."

(Dickens Decl., Ex. B, §7.2.) The parties may elect to apply the FAA, even if there is no interstate commerce. (*Victrola 89, LLC v. Jaman Properties 8, LLC* (2020) 46 Cal.App.5th 337, 355.) Even so, section 7.1 identifies Defendant's participation in "Medicare and/or Medi-Cal programs" and procurement of "supplies from out of state vendors." It further states that the admission "involves interstate commerce." The FAA therefore applies. (*Aviation Data, Inc. v. American Express Travel Related Services Co.* (2007) 152 Cal.App.4th 1522, 1534-35.)

Scope of the Agreement

Section 2.1 of the agreement covers:

"any dispute between Resident, including Resident's *heirs* and/or agents, ... that relates to the *provision of care, treatment and services* the Facility provides to the Resident, (collectively referred to herein as "Facility), including any action for *injury or death* arising from negligence, torts, intentional tort and/or statutory causes of action (including all California

Welfare and Institutions Code sections, all California Business and Professions Code sections, Health and Safety Code section 1430), and all other statutory claims under any applicable California code...”

(Dickens Decl., Ex. B, § 2.1.) Section 5.1 makes the agreement “effective as of the date of the Resident’s first admission to the Facility.” (*Id.*, § 5.1.) Here, the first three causes of action (elder abuse/neglect, negligence, and patient’s rights) arise from care provided during Decedent’s residency at Defendant’s facility. The agreement would cover those claims.

The Wrongful-Death Claim

Plaintiff’s daughter argues that she is not a signatory to the agreement and cannot be bound. From the records, both signature lines on the agreement for a “Legal Representative/Agent of Resident and Individually” are blank. (Dickens Decl., Ex. B, pp. 4 & 5.) Section 3.1 states that representatives, family members, and heirs “who execute this Agreement below” agree to arbitrate claims brought in their individual capacities. (*Id.*, § 3.1.) Plaintiff’s daughter did not execute the agreement in any capacity. The agreement’s reference to heirs cannot, by itself, supply her consent to arbitrate her claim.

“In California, wrongful death claims, unlike survivor claims, are *not* derivative of the decedent’s own claims; they are, rather, independent statutory actions accruing to a decedent’s heirs for pecuniary injuries suffered by the loss of a relative.” (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 375, emphasis added.) *Ruiz v. Podolsky* (2010) 50 Cal.4th 838 creates a limited exception for wrongful death claims based on “professional negligence” (as defined in CCP § 1295) and “manifests an intent to bind” heirs. (*Holland, supra*, 18 Cal.5th at 375.) Wrongful death claim brought against skilled nursing facility based on neglect of a resident’s basic welfare and safety needs was not necessarily a claim for professional negligence. (*Id.* at 380-81.)

Here, the FAC principally alleges failures to provide custodial care, instead of medical malpractice. The FAC alleges that Defendant failed to provide hygiene assistance, failed to monitor the Foley catheter and vital signs, failed to timely report changes in condition and abnormal findings, and failed to assist Decedent in obtaining timely medical care. (FAC, ¶¶ 25-39, 54-66.) The *Holland* court identifies that failures involving personal hygiene, routine monitoring, and assistance in obtaining medical care generally fall “on the custodial side of the line,” rather than professional negligence. (*Holland, supra*, 18 Cal.5th at 380.) Hurtado therefore should not be compelled to arbitrate her individual 4th cause of action for wrongful death.

Unconscionability

If an arbitration agreement satisfies the minimum requirement for validity, as here, it must be enforced unless the party opposing enforcement can prove that the agreement is both procedurally and substantively unconscionable. (*Baltazar v. Forever 21, Inc.* (2016) 62 Cal.4th 1237, 1243.) The party resisting arbitration bears the burden of

proving unconscionability. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114 (“*Armendariz*”).) Unconscionability has a procedural and a substantive element, “the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (*Ibid.* (citation and quotation marks omitted).) But they need not be present to the same degree. Rather, courts invoke a “sliding scale” to determine unconscionability: “The more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Armendariz, supra*, 24 Cal.4th at 114.) “Although both elements must be present before a contract or contract provision is rendered unenforceable on grounds of unconscionability, they are reviewed in tandem such that ‘the greater the degree of substantive unconscionability, the less degree of procedural unconscionability that is required to amend the contract or clause.’” (*Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329.)

Procedural

Procedural unconscionability concerns the manner in which the contract was negotiated. It may result from either oppression or surprise due to unequal bargaining power. (*Malone v. Sup.Ct. (California Bank & Trust)* (2014) 226 Cal.App.4th 1551, 1561.)

Here, there is some degree of procedural unconscionability. Defendant presented a standardized form to a medically vulnerable resident who depended on the facility for extensive activities of daily living. The record contains no evidence that Decedent could negotiate any term. Defendant also presented the agreement on 5/21 (about 15 days *after* admission on 5/6) and made it retroactive to the first day of care. These created unequal bargaining power and some potential for surprise.

However, the agreement was separate from the admission agreement. (Dickens Decl., Ex. B.) It also stated at the top of the first page, in bold, that signing was *not* a condition of admission or continued care. (*Id.*) Immediately before the signature lines, section 12.2 repeated the warning “that its execution is not a precondition to receiving medical treatment, care, services and/or for admission to the Facility and is not a requirement to continue to receive medical treatment, care and services at the Facility.” (*Id.*, §12.2.) Section 6.1 allowed the agreement to be “rescinded by written notice within thirty (30) days of signature.” (*Id.*, §6.1.) Quijano describes the facility’s general practice and procedures of explaining the agreement and allowing signers to ask questions about the admission documents and the arbitration agreement (although she does not specifically state that she explained this agreement to Decedent in a manner that Decedent understood.) (Quijano Decl., ¶¶ 2-4.) On balance, there is a modest degree of procedural unconscionability.

Substantive

Substantive unconscionability focuses on the terms of the agreement and the presence of overly harsh or one-sided results such as to shock the conscience. (*Suh v. Superior*

Court (CHA Hollywood Medical Center, L.P.) (2010) 181 Cal.App.4th 1504, 1515; *Martinez v. Master Protection Corp.* (2004) 118 Cal.App.4th 107, 113.)

Here, the agreement requires arbitration of the resident's negligence, torts, and personal-injury claims, but exempts "disputes pertaining to collections or evictions" from arbitration. (Dickens Decl., Ex. B, § 3.1.) This collections-and-evictions exception preserves a forum for the claims Defendant is likely to bring, but compelling arbitration of the claims a resident is likely to bring. The court in *Lopez v. Bartlett Care Center, LLC* (2019) 39 Cal.App.5th 311 considered similar nursing facility language and held that the collections-and-evictions exception is "clearly one-sided, benefitting only the Facility, and thus renders the agreement itself substantively unconscionable." (*Id.* at 322, internal quotation marks omitted.) Section 3.1 here appears to be substantively unconscionable for the same reason.

Plaintiffs' remaining challenges do not show additional substantive defects. Section 10.1 allocates arbitrator expenses and fees "equally among all parties except as otherwise permitted or required by law." (Dickens Decl., Ex. B, § 10.1.) "[I]f the trial court determines that any of these plaintiffs is unable to share in the cost of the arbitration, ... [Defendant] can elect to either pay that plaintiff's share of the arbitration cost and remain in arbitration or waive its right to arbitrate that plaintiff's claim." (*Roldan v. Callahan & Blaine* (2013) 219 Cal.App.4th 87, 96.) Hurtado declares that she cannot personally afford to pay arbitration fees, but she does not address whether Decedent's estate has assets. (Hurtado Decl., ¶¶ 3-5.) The record here therefore does not support invalidating the agreement on cost grounds.

Also, the agreement itself does not restrict discovery. CCP § 1283.05(a) allows the parties to the arbitration "the right to take depositions and to obtain discovery regarding the subject matter of the arbitration." (CCP § 1283.05(a).) Also, section 7.3's exclusion of CCP §1281.2(c) aligns with the parties' selection of the FAA and applies to both sides. (Dickens Decl., Ex. B, § 7.3.) These provisions do not appear to add to the one-sidedness required to invalidate the entire agreement.

The real question here is severance. Section 11.1 states that an "[i]f any provision in this Agreement is held invalid, such holding shall not impact the validity of the remaining provisions of this Agreements[sic]." (Dickens Decl., Ex. B, § 11.1.) The collections-and-evictions exception discussed above can be removed without altering the procedures governing Plaintiffs' claims. "Courts have rejected the proposition that more than a single unconscionable provision in an arbitration agreement precludes severance." (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 516, internal quotation marks omitted.) Under the "qualitative" and "totality of the circumstances" standards, modest procedural unconscionability and one severable defect do not show that the agreement is "permeated with unconscionability." (*Id.*, at 518.)

5.

CASE #	CASE NAME	HEARING NAME
CVSW2305039	TEMECULA PETROLEUM INC. vs TEMECULA PREMIUM GASOLINE	MOTION TO COMPEL

Tentative Ruling:

Hearing is vacated as parties failed to file a joint statement regarding the meet and confer efforts and results thereof at least ten days prior to this continued hearing.